

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

JUSTICE MUHAMMAD ALI MAZHAR
JUSTICE MUSARRAT HILALI
JUSTICE SHAHID BILAL HASSAN

C.A. No. 888/2020 OUT OF C.P. No. 893/2017

[Against judgement dated 06-03-2017 passed by the Peshawar High Court, Peshawar, in C.R. No. 374-P of 2011]

Sherzali and others

...Appellant(s)

Versus

Saad Ullah Khan

...Respondent(s)

For the Appellant(s): : Muhammad Farooq Malik, ASC.

For the Respondent(s): : Shah Faisal Khan, ASC
(*via video link from Peshawar*)

Date of Hearing : 09.06.2026

JUDGMENT

SHAHID BILAL HASSAN, J- Brief facts germane to the filing of the instant appeal are as such that the respondent/plaintiff, Saad Ullah Khan, instituted a suit for possession on the basis of pre-emption in respect of land measuring 6 kanals and 8 marlas comprised in Khasra No.1312 situated in village Bilitang, District Kohat, which had been transferred through mutation No.4895 attested on 27.12.2003 in favour of the appellants/defendants. The case of the respondent was that upon gaining knowledge of the sale transaction from Shams-ul-Haq at about 4:00 p.m., he performed Talb-e-Muwathibat and thereafter completed Talb-e-Ishhad, thereby asserting his right of pre-emption. The suit was contested by the present appellants who while submitting written statement controverted the averments of plaint and prayed for dismissal of the suit.

Divergence in pleadings of the parties was summed up into issue and after recording evidence of the parties, pro and contra, the learned trial Court dismissed the suit vide judgment and decree dated 02.09.2009, holding that the plaintiff/respondent had failed to specifically plead the date and place of Talb-e-Muwathibat in the plaint as required under section 13 of the Khyber Pakhtunkhwa Pre-emption Act, 1987. Aggrieved thereof, the respondent/plaintiff preferred an appeal, which was accepted by the learned District Judge, Kohat, vide judgment and decree dated 10.02.2011. The appellate Court found that the requisite particulars regarding Talb-e-Muwathibat and Talb-e-Ishhad were sufficiently pleaded and proved on the record, consequently setting aside the judgment of the trial Court and decreeing the suit for pre-emption upon deposit of the pre-emption money.

The appellants then assailed the appellate judgment through Civil Revision No.374-P of 2011 before the Peshawar High Court. The revision petition was, however, dismissed vide judgment dated 06.03.2017, affirming the findings recorded by the appellate Court. Against the judgment of the High Court, a Civil Petition for Leave to Appeal was filed before this Court. Leave was granted vide order dated 14.10.2020, wherein this Court observed as under:

“The learned counsel states that the learned Judge of the Appellate Court and the learned Judge of the High Court did not appreciate that neither the date nor the place of the performance of Talb-i-Muwathibat was mentioned in the plaint and in this regard relies on the case of Pir Muhammad v. Faqir Muhammad (PLD 2007 Supreme Court 302). He further states that even if it is accepted that in the clause with regard to the cause of action the date and time of the cause of action is mentioned this cannot be taken to mean that the Talb-i-Muwathibat was performed on such date and time, which has to be specifically pleaded.”

Upon considering the aforesaid contention, this Court held that *“Leave to appeal is granted to consider the above points.”* Consequently, the petition stood converted into the present appeal.

2. Learned counsel for the appellants contended that the learned Appellate Court as well as the High Court fell into patent error in reversing the well-reasoned judgment of the trial Court. He

submitted that the suit was liable to fail on the face of the plaint as neither the date nor the place of performance of Talb-e-Muwathibat had been specifically pleaded. Referring to the five-member Bench judgment in Mian Pir Muhammad v. Faqir Muhammad (PLD 2007 SC 302), learned counsel argued that specific pleading of the date, time and place of Talb-e-Muwathibat is mandatory and omission thereof is fatal to a pre-emption suit. He further submitted that the mention of the date and time in the cause-of-action paragraph could not be treated as a substitute for a specific averment regarding performance of Talb-e-Muwathibat. According to the learned counsel, since the foundational requirement of a valid pre-emption claim was absent from the pleadings, no amount of evidence could cure the defect. He, therefore, prayed that the impugned judgments be set aside and that of the trial Court be restored.

3. Learned counsel for the respondent supported the impugned judgments and submitted that the respondent had sufficiently pleaded and proved the performance of both Talb-e-Muwathibat and Talb-e-Ishhad. He argued that the plaint, when read as a whole, adequately disclosed the date on which the respondent acquired knowledge of the sale and immediately asserted his right of pre-emption. Learned counsel maintained that the courts below had rightly appreciated the oral and documentary evidence and concurrently found that the mandatory requirements of Section 13 of the KPK Pre-emption Act, 1987 stood satisfied. He further contended that the objection raised by the appellants was hyper-technical in nature and that the suit could not be defeated merely on account of an alleged deficiency in drafting when the requisite facts had otherwise been established through evidence. He accordingly prayed for dismissal of the appeal.

4. We have heard the learned counsel for the parties and have examined the record with their able assistance.

5. The pivotal question requiring determination is whether the respondent/pre-emptor had complied with the mandatory requirements of Section 13 of the K.P.K. Pre-emption Act, 1987

by specifically pleading and proving the performance of Talb-e-Muwathibat and Talb-e-Ishhad?

6. A perusal of the record reveals that the learned trial Court dismissed the suit on the ground that the plaintiff had failed to mention the date and place of Talb-e-Muwathibat in the plaint. The learned appellate Court reversed the said finding by observing that the requisite Talbs stood proved from the evidence available on record, while the High Court maintained the appellate decree. The question, therefore, is whether such omission in the pleadings could be overlooked.

7. This issue is no longer *res integra*. In Mian Pir Muhammad and another v. Faqir Muhammad through L.Rs. and others (**PLD 2007 SC 302**), a judgment rendered by a five-member Bench of this Court, it was authoritatively held that it is mandatory for a pre-emptor to specifically plead the date, place and time of Talb-e-Muwathibat as well as the date of issuance of notice regarding Talb-e-Ishhad. This Court approved the earlier line of authorities as settled in Haji Muhammad Salem v. Khuda Bakhsh (**PLD 2003 SC 315**) and Fazal Suhhan and 11 others v. Mst. Sahib Jamala and others (**PLD 2005 SC 977**) and unequivocally declared that omission of these particulars in the plaint is fatal to a suit for pre-emption.

It may further be observed that in Mian Pir Muhammad and another v. Faqir Muhammad through L.Rs. and others (**PLD 2007 SC 302**), this Court elaborately examined the nature and scope of Talb-e-Muwathibat and explained that it is commonly understood as a "**jumping demand**", meaning thereby an immediate and spontaneous assertion of the right of pre-emption upon acquiring knowledge of the sale. The Court emphasized that the very essence of Talb-e-Muwathibat lies in its immediacy and, therefore, the law insists upon strict proof of the exact date, time and place when knowledge of the sale was first acquired and when the demand was made. The rationale behind requiring such particulars in the plaint is to enable the Court to ascertain whether the demand was made instantly and without any avoidable delay. Any omission regarding these foundational facts undermines the statutory requirement of

immediacy and renders the claim vulnerable to failure. Consequently, the date, time and place of Talb-e-Muwathibat are not mere formalities but constitute the very foundation upon which a suit for pre-emption rests. If the foundational demand itself is not specifically pleaded and proved, the entire edifice of the claim collapses. The right of pre-emption is a unique and a fragile right. Unlike many other rights bestowed by law, the exercise of this right depends entirely on the timely making of the various demands set out in section 13 of the Act, 1987. It is also obvious, from a bare reading of section 13 that the making of Talb-i-Muwathibat is the foundation on which the making of Talb-i-Ishhad and Talb-i-Khusumat is based. In fact, the timelines and conditions for the making of Talb-i-Ishhad and Talb-i-Khusumat provided in sections 13(3) and 13(4) of the Act *ibid* depend entirely upon the making of Talb-i-Muwathibat. Therefore, the date, time and place of making such demand is pivotal and foundational to the exercise of the right of pre-emption, the importance of which cannot be over-looked.¹

8. The aforesaid principle was subsequently reiterated in *Khyber Khan and others v. Haji Malik Amanullah Khan* (2007 SCMR 1036), wherein it was held that omission to mention even one of the three particulars, namely the date, time or place of Talb-e-Muwathibat, would by itself result in dismissal of the suit. The said view is further fortified by *Kashmali Khan and others v. Mst. Malala* (2023 SCMR 1176), wherein it was held that because the right of pre-emption is a weak and feeble right, every requirement relating to Talbs must be observed strictly and any departure therefrom defeats the claim. Likewise, in *Dr. Pir Muhammad Khan v. Khuda Bukhsh* (2015 SCMR 1243), it was observed that strict adherence to the requirements of Talb-e-Muwathibat and Talb-e-Ishhad is indispensable. In *Farid Ullah Khan v. Irfan Ullah Khan* (2022 SCMR 1231), this Court reiterated that Talb-e-Muwathibat constitutes the very foundation of a claim for pre-emption and where such Talb is not proved in accordance with law, the entire superstructure collapses.

¹ Mir Muhammad Khan and 2 others v. Haider and others (PLD 2020 Supreme Court 233)

9. Very recently, this Court in *Ghulam Abbas v. Abdul Sattar and another* (2026 SCP 172), decided on 21.05.2026, examined the entire law relating to Talbs and, while placing reliance upon (PLD 2007 SC 302), (2023 SCMR 1305), (2023 SCMR 1113) and (2022 SCMR 1522), held that the requirement of specifically pleading the essential particulars of Talbs is not a mere technical formality but is intrinsically linked to the statutory scheme governing pre-emption. The Court further held that where the plaint does not disclose the mandatory particulars of Talb, the claim becomes legally deficient at the threshold and no amount of subsequent evidence can cure such defect.

10. In addition to the above, the chain as to imparting of information with regards to disputed transaction is also missing, because the respondent could not plead from whom the informer received the information. This Court has already held in judgment² that:

‘Only the complete chain of the source of information of the sale can establish the essential elements of Talb-i-Muwathibat, which are: (i) the time, date and place when the pre-emptor obtained the first information of the sale, and; (ii) the immediate declaration of his intention by the pre-emptor to exercise his right of pre-emption, then and there, on obtaining such information. Reference in this regard may be made to the case of Farid Ullah Khan v. Irfan Ullah Khan (2022 SCMR 1231). In the present case, such chain of the source of passing on the information, as to the fact of the sale of the suit land has not been proved as Muhammad Basharat Ali has categorically refused to meet and share the information about the sale of the suit land with Ghulam Mustafa (the informer). The entire case of the respondents regarding the issuance of Talb-i-Muwathibat built on the hearsay evidence of Ghulam Mustafa (the informer) falls to the ground due to an incomplete chain of information about the sale of the suit land. Therefore, the learned trial Court correctly observed that when the source of information provided

² Muhammad Riaz v. Muhammad Akram and others (2024 SCMR 692)

by the informer is not proved, the transmission of this information to the respondents also becomes highly doubtful. However, both the learned first appellate court and the learned High Court failed to take note of this important fact of the matter and set-aside the judgment and decree of the learned trial court. Therefore, we feel no hesitation to hold that the respondents failed to prove the validity of Talb-i-Muwathibat made by them for exercising their right of pre-emption over the suit land.'

11. In the present case, the plaint admittedly does not contain the essential particulars regarding Talb-e-Muwathibat, particularly the date and place at which it was allegedly performed. Such omission strikes at the root of the claim. Once the foundational requirement of Talb-e-Muwathibat is absent from the pleadings themselves, the subsequent discussion regarding proof of Talb-e-Ishhad becomes largely inconsequential. The law requires not only proof but also precise pleading of the mandatory Talbs, and failure to satisfy either requirement is fatal, because it is a settled principle of law that a party cannot travel beyond its pleading and is bound by its pleadings³.

12. When the first and primary Talb i.e. Talb-i-Muwathibat, is found to have not been proved, we need not examine the evidence on the making of the second Talb (Talb-i-Ishhad) as where Talb-i-Muwathibat is not proved to have been made then the performance of Talb-i-Ishhad and all other requirements to successfully enforce the right of pre-emption cannot withstand. The foundation of the right of pre-emption rests on the making of Talb-i-Muwathibat; if it is not made in accordance with the law, the entire superstructure collapses.⁴

13. The learned trial Court, therefore, rightly dismissed the suit. The learned appellate Court as well as the High Court fell into patent error in treating the defect as curable through evidence and in

³ Sh. Fateh Muhammad v. Muhammad Adil and others (PLD 2008 SC 82) and Hyder Ali Bhimji v. Additional District Judge Karachi South and another (PLD 2012 SC 279)

⁴ Farid Ullah Khan v. Irfan Ullah Khan (2022 SCMR 1231)

overlooking the settled law laid down by the five-member Bench of this Court in Mian Pir Muhammad (supra). Their findings being contrary to the settled principles governing pre-emption cannot be sustained.

14. In view of what has been discussed above, we are of the considered opinion that the learned Appellate Court and the High Court misapplied the settled principles governing pre-emption and overlooked the mandatory requirement of specifically pleading the date and place of Talb-e-Muwathibat. Consequently, this appeal is allowed, the impugned judgment of the High Court and that of the appellate Court are set aside and the judgment and decree of the learned trial Court are restored.

15. Above are the reasons for our short order announced in open Court on even date.

JUDGE

JUDGE

JUDGE

Islamabad, the
9th of June, 2026
"Approved for Reporting"
M.A. Hassan